

25NNCV07180 25NNCV07180

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Case Number: 25NNCV07180 Hearing Date: August 7, 2026 Dept: D

TENTATIVE RULING

Calendar: 5

Date: August 7, 2026

Case No: 25NNCV07180 Trial Date: October 11, 2027

Case Name: Mehrabian LLC, et al. v. Jaguar Land Rover North America, LLC, et al.

MOTION TO COMPEL DEPOSITION

[CCP § 871.26]

Moving Party: Plaintiffs, Mehrabian LLC and Vana Mehrabian

Responding Party: Defendant, Jaguar Land Rover North America, LLC

RELIEF REQUESTED:

An order for compliance requiring Defendant Jaguar Land Rover North America, LLC to produce its PMQ for deposition and pay sanctions.

CAUSES OF ACTION: from Complaint

1) Fraud and Deceit [dismissed on 11/19/20205]

2) Breach of Written Warranty Pursuant to the Magnuson-Moss Warranty Act

- 3) Breach of Implied Warranty Pursuant to the Magnuson-Moss Warranty Act
- 4) Breach of Written Warranty Pursuant to the Song-Beverly Consumer Warranty Act
- 5) Breach of Implied Warranty Pursuant to the Song-Beverly Consumer Warranty Act
- 6) Violation of Business & Professions Code § 17200, et seq. [dismissed on 11/19/20205]
- 7) Violation of Business & Professions Code § 17500, et seq. [dismissed on 11/19/20205]
- 8) Negligence
- 9) Strict Liability

CHRONOLOGY:

Notice of Deposition Served: December 22, 2025 / March 13, 2026

Date of Deposition [10-day lapse]: July 22, 2025 / March 26, 2026

Motion Served: April 9, 2026

SUMMARY OF FACTS:

This case is a lemon-law action. Mehrabian, LLC and Vana Mehrabian (collectively, "Plaintiffs") allege that on January 10, 2023, they leased a new 2023 Land Rover Range Rover for which Defendant Jaguar Land Rover North America, LLC ("Jaguar") issued express warranties. Plaintiffs alleges that defects and nonconformities to warranty manifested themselves within the express warranty period. The Complaint alleges that notwithstanding Plaintiffs' entitlement, Jaguar has failed to either promptly replace the new motor vehicle or to promptly make restitution in accordance with the Magnuson-Moss Warranty Act or the Song-Beverly Act.

ANALYSIS:

"Within 120 days after the filing of the answer or other responsive pleading, all parties have the right to conduct initial depositions, each not to exceed two hours, of the following deponents:

- (1) The plaintiff.
- (2) The defendant, and if the defendant is not a natural person, the person who is most qualified to testify on the defendant's behalf."

(CCP, § 871.26, subd. (c).)

Plaintiffs move to compel Jaguar to produce their person most qualified for deposition under CCP section 871.26 subdivision (c). Jaguar filed its Answer to the Complaint on November 20, 2025. Accordingly, the deadline for the parties to conduct their initial depositions was March 20, 2026. (CCP, § 871.26, subd. (c).) On December 22, 2025, Plaintiffs served a Notice of Taking Initial Deposition of PMQ, with a deposition date for January 28, 2026. (Margarian Decl., Ex. A.) Jaguar objected to the Deposition Notice, arguing that it had been unilaterally scheduled and neither counsel nor deponent was available on that day. (Margarian Decl., Ex. B.) Jaguar advised that its PMQ would be available for deposition on March 26, 2026. (Margarian Decl., Ex. F.) On March 13, 2026, Plaintiffs served a second Notice of Taking Initial Deposition of PMQ, with a deposition date of March 26, 2026. (Margarian Decl., Ex. G.) However, Jaguar failed to appear at the scheduled deposition. (Margarian Decl., ¶ 24.) After the scheduled deposition time had passed, Jaguar advised for the first time that the deposition date was no longer available. (Margarian Decl., ¶ 24.)

In the opposition, Jaguar asserts that it intended to move forward with the March 26, 2026 deposition, however, due to scheduling conflicts, Jaguar's PMQ was unavailable on the day of the deposition. (Opp., p. 2:16-17.) Jaguar asserts that it has since confirmed the availability of its PMQ and had offered a definitive deposition date of October 1, 2026. (Opp., p. 5:3.)

It is undisputed that Plaintiffs noticed the deposition of Jaguar's PMQ within 120 days after the filing of the Answer, and that Jaguar failed to produce its PMQ within that time frame. Thus, Jaguar has failed to comply with the requirements of CCP section 871.26, subdivision (c), and an order compelling the deposition is warranted.

Moreover, this Court's Standing Order Re Discovery in Song-Beverly Litigation states that "Within the time limits allowed by law. Defendant may depose plaintiff, and plaintiff may depose the person most knowledgeable (PMK) as to up to 5 categories of information, plus a deposition of the PMK as to why the subject vehicle was not repurchased, in addition to depositions of any experts identified by the parties, after a formal demand and exchange of expert witness information, per CCP § 2034. Parties shall meet and confer as to whether there is a need to take any additional depositions. Any additional depositions may only be noticed and taken by stipulation and/or court order (via motion upon showing of good cause)." (Order, ¶ 4.)

"If a deponent resides out of state, the deposition may be taken by video conference or telephone. The parties will not be required to travel to California, and the attorneys will not be required to travel out of state." (Order, ¶ 4.)

The motion is GRANTED.

Request for Sanctions

"Unless the party failing to comply with [section 871.26] shows good cause, [...] a court shall impose sanctions as follows: [...] A one-thousand-five-hundred-dollar (\$1,500) sanction against the plaintiff's attorney or two-thousand-five-hundred-dollar (\$2,500) sanction against the defense attorney respectively, paid within 15 business days for failure to comply with the provisions relating to depositions as prescribed in subdivision (c)." (CCP, § 871.26, subd. (j)(2).)

Jaguar asserts that there is good cause to decline sanctions here because Jaguar's PMQ witnesses "are a small group of highly specialized individuals responsible for testifying in a large volume of cases" which "severely limits their availability. (Opp., p. 4:10-14.) Although the Court recognizes the high volume of lemon law litigation and the resulting demands placed on automobile manufacturers' PMQ's, those circumstances do not excuse Jaguar's failure to provide a deposition date until more than 9 months after service of the initial deposition notice, and more than 6 months after the applicable statutory deadline had passed.

The request for sanctions is GRANTED.

RULING:

Plaintiffs Mehrabian LLC and Vana Mehrabian's Motion to Compel Deposition of Person Most Qualified at Defendant Jaguar Land Rover North American, LLC is GRANTED.

The deposition shall take place no later than 30 days from the date of this order.

Plaintiffs' request for sanctions in the amount of \$2,500.00 is GRANTED. Jaguar's counsel, Turner Henningsen Wolf & Vandenburg, LLP, is ordered to remit sanctions to Plaintiffs within 15 business days of this order. (CCP, § 871.26, subd. (j)(2).)

Counsel for moving party is ordered to prepare an order for sanctions and submit it on eCourt by noon today in accordance with this order.

DEPARTMENT D IS CONTINUING TO CONDUCT AND ENCOURAGE

VIDEO APPEARANCES

If you wish to appear remotely on LACourtConnect, you may register by visiting www.lacourt.ca.gov to schedule a remote appearance. Please note that LACourtConnect offers free audio and video appearances. Department D is now requiring either live or VIDEO appearances, not audio appearances.